

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979, read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal No:
CA/HCC/0037/2022

Hettiarachchige Ishara Shehan Perera

High Court of Chilaw
Case No. HC/47/2018

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Anil Silva, PC with Anjana Abeyratne for the Appellant.**
Wasantha Perera, DSG for the Respondent.

ARGUED ON : **08/06/2026**

DECIDED ON : **07/08/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General under Sections 354 and 364(2) of the Penal Code for committing the offences of Kidnapping from lawful guardianship and committing rape on Migel Hewage Kanchana Maheshika Kumari on 09/08/2008.

The trial commenced before the High Court Judge of Chilaw and the prosecution had led seven witnesses and marked productions P1- P3 and closed the case. The Learned High Court Judge having been satisfied that the evidence presented by the prosecution warrants a case to answer, called for the defence and explained the rights of the accused.

The Appellant had opted to make a dock statement; two witnesses were called on his behalf and afterwards closed his case. Having considered the

evidence presented by both parties, the Learned High Court Judge had convicted the Appellant as charged and sentenced him as follows:

- For the first count he was sentenced to two years rigorous imprisonment with a fine of Rs. 5,000/-.
- For the second count he was sentenced to 11 years rigorous imprisonment with a fine of Rs.5,000/- imposed.

Additionally, a compensation of 150,000/- to be paid to PW1 was imposed with a default sentence of 12 months simple imprisonment.

The background of the case *albeit* briefly is as follows:

In this case the prosecutrix was 14 years old when she faced this bitter ordeal. As her parents were separated, she and her sister had lived with her father. On the day of the incident, she had gone to her grandmother's house to attend a feast held in Taniwella Devalaya. After the feast, they had all been served with food. After having food, all of them had gone home. When they were about to go home, her mother had given a food parcel to be given to her father. The victim had used her mother's bicycle to go to her father's house. On the way, the Appellant had approached her and taken the food parcel given for her father. Although she had pleaded, the Appellant had not given it back to her. Afterwards, both of them had proceeded to her father's house and left the food parcel there. On the way back he had approached her once again and taken her to a lonely spot and raped her till the following day. When she went home and told the incident to her mother, both of them had gone to the police and had lodged her complaint.

PW2 Rada Kumari, the mother of the victim was called next by the prosecution.

PW11, JMO Dr. Illangarathna Banda had examined the victim on 11.08.2008, two days after the incident. In her short history to the JMO, the victim had told that the Appellant had performed sexual intercourse against

her will. She also had said that the Appellant had performed anal sex as well. As the vaginal examination revealed multiple vaginal penetrations, upon questioning, the victim had told the JMO that she had sexual intercourse previously with several persons. In addition to vaginal penetration, the JMO had noted recent anal penetration as well.

The Appellant had raised the following grounds of appeal:

1. Has the prosecution proved the case against the Appellant beyond reasonable doubt?
2. Has the Learned High Court Judge not properly assessed the material contradictions present in the prosecution case thereby did a miscarriage of justice occur?
3. Has the Learned High Court Judge not properly analysed the defence evidence having regard to the guidelines set by the Superior Courts denying the Appellant a fair trial?
4. Has the Learned High Court Judge not considered the matters favourable to the Appellant?
5. Without prejudice to the above questions of law is the imposition of the sentence excessive?

As the appeal grounds raised by the Appellant are interconnected, all will be considered together hereinafter.

In criminal cases, the prosecution bears the weight of proving the defendant's guilt to the jury and to sufficiently explain why a conviction is justified. "Beyond a reasonable doubt" refers to the legal principle that the evidence and arguments brought forward by the prosecution must be so strong and convincing that any rational person could accept the guilt of the defendant as fact. Such a standard would ensure no uncertainties exist when a defendant is convicted.

In the case of **State of Andra Pradesh v. Garigula Satya Vani Murthy** AIR 1997 SC 1588, it was held that:

“...the courts are expected to show great responsibility while trying an accused on charges of rape. They must deal with such cases with utmost sensitivity.”

The prosecutrix in her evidence admitted and clearly stated how she was raped by the Appellant after he had dragged her to a lonely spot. Although, she had said that she had experienced sexual intercourse for the first time, she had told the JMO that she had sexual intercourse previously. This had been clearly revealed by the examination done by the JMO. Although the learned President's Counsel highlighted this contradiction during his submission, it was submitted to this court that he is only contesting the sentence imposed in this case.

The learned Deputy Solicitor General in keeping with the highest tradition of the Attorney General's Department informed Court that he will not object if this Court reconsider the sentence imposed by the Learned High Court Judge.

In criminal trials, sentencing takes place subsequent to a defendant being found guilty or after the defendant pleads guilty. The judge would determine the penalty after a dedicated sentencing hearing. This is done by a thorough assessment of the severity of the crime, the criminal history of the defendant, any aggravating or mitigating circumstances and victim impact statements, in order to issue the appropriate sentence, such as incarceration, probation or fines.

Considering the submissions made by the learned President's Counsel with regard to the sentence imposed on the Appellant, I deduct one year from the sentence imposed on the second count. Therefore, now, for the second count he has to serve 10 years rigorous imprisonment to run concurrent to the 02 years sentence imposed on the first count.

The fine imposed and the compensation ordered will remain same with the default sentence imposed.

Considering all the circumstances, I back date the sentence effective from the date of conviction, namely 17.12.2021.

Subject to the above variation in the sentence, the Appeal is dismissed.

The Registrar is directed to send this judgment to the High Court of Chilaw along with the original case record.

JUDGE OF COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF COURT OF APPEAL